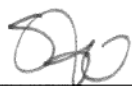
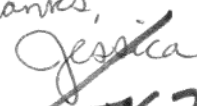
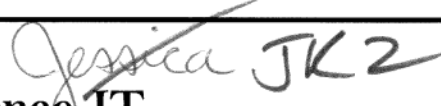


CITY MANAGEMENT

Coordination Sheet

<u>FROM:</u>	Tammy Lawrence			
<u>DATE:</u> Aug 18, 2016		NAME	INITIALS	DATE
<u>TO:</u>		Ms. Jessica Kurz Purchasing Manager		
	X	Mr. Brian James Executive Director-Development		8/30/16
		Mr. Juan Santoya Finance Director		
	X	Ms. Sarah Gonzalez Assistant to City Manager		8/31/16
	X	Mr. John Kessel City Manager		8/31
<u>Comments:</u> Attached is the CAF and supporting documents for the <u>Civic Plus</u> contract. This has been <u>approved</u> ^{SP} as a consent agenda item for August 23, 2016. Thank you  <u>approved</u> Thanks, Jessica JK2				
<u>Return To:</u>	Tammy Lawrence-IT  JK2			

CITY OF SCHERTZ
CONTRACT APPROVAL FORM

A. To be completed by Department

1. Contract with: Icon Enterprises, Inc dba CivicPlus Contract amount: \$ 37,449.00
2. Contract for: Website Platform Development, Hosting
3. Fund/Account to be charged: 853-532355 / 532400 Dept. 853 - Inf. Technologies
4. Contract category and amount in the budget: ☒ yes ☐ no – budget adjustment required
Budget Amendment Ord/Res Number: _____ Date: _____
5. Contract required to be bid: ☐ yes ☒ no (If unsure, contact Purchasing.)
Bidding completed: ☐ yes ☐ NA (bidding not required)
Bidding exemption: (if bidding is not required state reason): TIPS Buy Board contract # 2092613
6. Contract termination date: 12 months ☐ NA
7. Terms of contract reviewed and approved by Department Head: ☒ yes
8. Is Executive Director aware of contract? ☒ yes
9. If going to Council, is City Manager aware of contract? ☒ yes ☐ NA
10. Department Head's signature: _____ Date: 08/08/2016

B. To be completed by Purchasing and Asset Management

1. FINANCE
- a. Contract amount in the budget: ☒ yes ☐ no – budget adjustment required
- b. Fund/Account to be charged: 101-853-532355
- c. Finance Director's signature: _____ Date: 8-29-16
2. LEGAL
- a. Contract reviewed and approved by City Attorney ☐ not requested ☒ yes (attach email approval)
- b. Date Reviewed and Approved by City Attorney 8/26/16 JK
3. PURCHASING
- a. Vendor aggregate POs <\$50K for budget period ☒ yes ☐ no
- b. Contract reviewed for insurance, warranty, term, severability and indemnity requirements: ☒ yes
- c. Contract properly bid in accordance with City Purchasing Policy ☒ yes ☐ NA
- d. Vendor signature obtained ☐ yes ☒ no (other party requires signature by City first)
- e. Purchasing and Asset Management Signature: _____ Date: 8/29/16
4. COUNCIL APPROVAL REQUIRED? ☒ yes ☐ no ☐ NA (Required over \$50,000)
- a. Date of City Council approval: 8/23/16 Res/Ord #: 16-R-166 ☒ Attached
- b. If not approved by City Council, state reason: _____

C. To be completed by Executive Director:

1. Final contract reviewed and recommend City Manager signature: ☒ yes ☐ no
2. Executive Director's Signature: _____ Date: 8-30-16

D. To be completed by Assistant to the City Manager

1. Assistant reviews and obtains CM signature Assistant Signature: Sarah Spangley
2. Signed contract is given to Purchasing & Asset Management. 8/31/16

E. To be completed by Purchasing and Asset Management

1. Date fully-executed contract received by Purchasing: 9/16/16
2. Date filed to Laserfiche: 10/5/16 Filed as: JK

Jessica S. Kurz

From: Clauser, Myles
Sent: Monday, August 29, 2016 1:21 PM
To: Jessica S. Kurz
Subject: Fw: Signed CivicPlus Agreements
Attachments: MSA - TX, Schertz.pdf; SOW1 - TX, Schertz.pdf

what do you think? Can we get K to sign it?

Myles Clauser, CPM, CGCIO
Director Information Technologies
City of Schertz
210-619-1180

From: Danny Elmore <elmore@civicplus.com>
Sent: Monday, August 29, 2016 1:16 PM
To: Clauser, Myles
Subject: FW: Signed CivicPlus Agreements

Here you go! Any chance to get counter-signed and back to me electronically today or tomorrow? I'd very much appreciate it! Please let me know.

Thanks.

Danny Elmore | **CivicPlus** | elmore@civicplus.com | 785-477-8024

From: Kyle Karpowicz
Sent: Monday, August 29, 2016 11:14 AM
To: Danny Elmore <elmore@civicplus.com>
Subject: RE: Signed CivicPlus Agreements

Attached!

From: Danny Elmore
Sent: Friday, August 26, 2016 3:57 PM
To: Contracts <Contracts@civicplus.com>
Subject: Fwd: Signed CivicPlus Agreements

Sent from my iPhone

Begin forwarded message:

From: "Clauser, Myles" <mclauser@schertz.com>
To: "Danny Elmore" <elmore@civicplus.com>
Subject: Fw: Signed CivicPlus Agreements

please see comments below. can we get these minor changes put in place and get back to us?

Thanks

Myles Clauser, CPM, CGCIO
Director Information Technologies
City of Schertz
210-619-1180

From: Jessica S. Kurz
Sent: Friday, August 26, 2016 3:42 PM
To: Tammy Lawrence; Clauser, Myles
Subject: FW: Signed CivicPlus Agreements

Hi Guys,

Legal has advised that the contract should be subject to termination at any time upon notice, rather than only at the end of the term. Even if the annual contract fee is paid up front, it can be reimbursed on a pro-rata basis. Also, every contract is subject to Council appropriating the funds each year. With that, if there is any way to adjust the contracts (even though they have already signed), it is advisable.

Suggested changes are included in the attached documents.

Please let me know if you have any questions.

Thanks,
Jessica

From: Tammy Lawrence
Sent: Monday, August 22, 2016 3:53 PM
To: Jessica S. Kurz
Subject: FW: Signed CivicPlus Agreements

Tammy Lawrence

Admin Asst./Help Desk Coordinator
Information Technology
City of Schertz
1400 Schertz Pkwy
Schertz, TX 78154

210.619.1187 phone



www.schertz.com

City of Schertz

RESOLUTION NO. 16-R-66

A RESOLUTION BY THE CITY COUNCIL OF THE CITY OF SCHERTZ, TEXAS AUTHORIZING A CONTRACT WITH ICON ENTERPRISES, INC., DBA CIVICPLUS FOR WEBSITE MIGRATION AND HOSTING SERVICES AND OTHER MATTERS IN CONNECTION THEREWITH

WHEREAS, the City of Schertz (the "City") has an ongoing need for upgrading its web presence, and the City desires to purchase these services from Icon Enterprises, dba CivicPlus pursuant to the terms and conditions of the TIPS/TAPS buy board Agreement; and

WHEREAS, Subchapters D and F of the Chapter 271 of the Local Government Code authorizes cities to participate in cooperatives with the state or local governments for the purpose of procuring good and services; and

WHEREAS, the City Council authorizes City Staff to request additional services by Icon Enterprises, dba CivicPlus in an amount not to exceed \$37,449.00.

BE IT RESOLVED BY THE CITY COUNCIL OF THE CITY OF SCHERTZ, TEXAS THAT:

Section 1. The City Council hereby authorizes expenditures with Icon Enterprises, dba CivicPlus not to exceed \$37,449.00 for the remainder of Fiscal Year 2015-2016.

Section 2. The recitals contained in the preamble hereof are hereby found to be true, and such recitals are hereby made a part of this Resolution for all purposes and are adopted as a part of the judgment and findings of the City Council.

Section 3. All resolutions, or parts thereof, which are in conflict or inconsistent with any provision of this Resolution are hereby repealed to the extent of such conflict, and the provisions of this Resolution shall be and remain controlling as to the matters resolved herein.

Section 4. This Resolution shall be construed and enforced in accordance with the laws of the State of Texas and the United States of America.

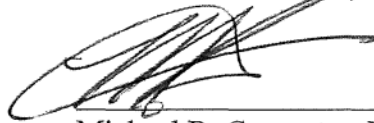
Section 5. If any provision of this Resolution or the application thereof to any person or circumstance shall be held to be invalid, the remainder of this Resolution and the application of such provision to other persons and circumstances shall nevertheless be valid, and the City Council hereby declares that this Resolution would have been enacted without such invalid provision.

Section 6. It is officially found, determined, and declared that the meeting at which this Resolution is adopted was open to the public and public notice of the time, place, and subject matter of the public business to be considered at such meeting, including this Resolution, was given, all as required by Chapter 551, Texas Government Code, as amended.

Section 7. This Resolution shall be in force and effect from and after its final passage, and it is so resolved.

PASSED AND ADOPTED, this 23rd day of August, 2016

CITY OF SCHERTZ, TEXAS



Michael R. Carpenter, Mayor

ATTEST:


Brenda Dennis, City Secretary

(CITY SEAL)



Contact Information

Organization

URL

City of Schertz

Street Address 1400 Schertz Pkwy, Bldg 1

Address 2

City Schertz State TX Postal Code 78154

CivicPlus provides telephone support for all trained clients from 7am –7pm Central Time, Monday-Friday (excluding holidays). Emergency Support is provided on a 24/7/365 basis for representatives named by the Client. Client is responsible for ensuring CivicPlus has current updates.

Emergency Contact & Mobile Phone Myles Clauser 210.488.4200

Emergency Contact & Mobile Phone Keyasha Brothern 210.325.5915

Emergency Contact & Mobile Phone Eric Haugen 210.875.1177

Billing Contact Tammy Lawrence E-Mail it_dept@schertz.com

Phone 210.619.1187 Ext. Fax

Billing Address 1400 Schertz Pkwy, Bldg 1

Address 2

City Schertz ST TX Postal Code 78154

Tax ID # Redacted Sales Tax Exempt # Redacted

Billing Terms Annual Account Rep

Info Required on Invoice (PO or Job #) Yes

Contract Contact Myles Clauser Email mfc@schertz.com

Phone 210.619.1187 Ext. Fax

Project Contact Keyasha Brothern Email kbrothern@schertz.com

Phone 210.619.1187 Ext. Fax



Master Services Agreement

THIS Master Services Agreement ("Agreement") is agreed to by and between Icon Enterprises, Inc., d/b/a CivicPlus ("CivicPlus") and Schertz, Texas ("Client") (jointly, "Parties") and shall be effective as of the later date of signing indicated at the end of this Agreement ("Effective Date").

RECITALS

WHEREAS, CivicPlus is engaged in the business of developing, marketing and selling custom community engagement platforms that include web sites, web interfaces and portals and a proprietary government content management system and associated modules; in addition to project development, design, implementation, support and hosting services;

WHEREAS, Client wishes to engage in a relationship with CivicPlus for website development and hosting services;

WHEREAS, Client and CivicPlus have agreed to alter certain terms as set forth in the Agreement by this written instrument duly executed by the Parties, the modification of terms as specified in this Agreement.

NOW, THEREFORE, Client and CivicPlus agree as follows:

Term & Termination

1. The term of this agreement shall be the later of 1 year from the Effective Date or the termination or expiration of any associated Statement of Work ("SOW").
2. Either Party may terminate this Agreement or any associated SOW at the end of the Agreement term by providing the other Party with 30 days' written notice.
3. Unless terminated by either Party pursuant to Section 2, this Agreement will renew another 1-year term.
4. Notwithstanding the above, in the event this Agreement or any SOW is terminated, any outstanding invoices for Project Development shall become due in full and any outstanding Annual Services shall be prorated from the beginning of the renewal term to the date of termination.

Statements of Work

5. CivicPlus agrees to perform services and/or produce deliverables in accordance with the Statement(s) of Work in consideration of the fees described in the same Statement(s) of Work. Multiple and successive Statement(s) of Work may be entered into hereto. Such Statement(s) of Work are incorporated into this Agreement by reference and subject to the terms & conditions contained herein pursuant to Section 23.

Invoicing & Payment Terms

6. Invoices shall be sent electronically in the manner described in the relevant Statement of Work. Upon request CivicPlus will mail invoices and the Client will be charged a \$5.00 convenience fee.
7. Payment shall be due 30 days from date of invoice. Unless otherwise limited by law, a finance charge of 2.9 percent (%) per month or \$5.00, whichever is greater, will be added to past due accounts. Payments received will be applied first to finance charges, then to the oldest outstanding invoice(s).
8. Client allows CivicPlus to display a "Government Websites by CivicPlus" insignia, and web link at the bottom of their web pages. Client understands that the pricing and any related discount structure provided under this Agreement assumes such perpetual permission.
9. If a client change in timeline causes CivicPlus to incur additional expenses (i.e. airline change fees), Client agrees to reimburse CivicPlus for those fees. Not to exceed \$1,000 per CivicPlus resource per trip.

Ownership & Content Responsibility

10. Upon full and complete payment of submitted invoices for any SOW Project Development Fees, Client will own the Customer Content (defined as website graphic designs, the page content, all module content, all importable/exportable data, and all archived information relevant to the work and deliverables of the given SOW).
11. Upon completion of any SOW Project Development, Client will assume full responsibility for website content maintenance and content administration. Client, not CivicPlus, shall have sole responsibility for the accuracy, quality, integrity, legality, reliability, appropriateness, and intellectual property ownership or right to use of all Customer Content.
12. Client agrees that CivicPlus shall not migrate, convert, or port content or information that could reasonably be construed to be time-sensitive, such as calendar or blog content, in any project.



Intellectual Property & Ownership

13. Intellectual Property of the CivicPlus Government Content Management System (GCMS®) will remain the property of CivicPlus.
14. Client shall not (i) license, sublicense, sell, resell, transfer, assign, distribute or otherwise commercially exploit or make available to any third party the GCMS® software in any way; (ii) modify or make derivative works based upon the GCMS® software; (iii) create Internet "links" to the GCMS® software or "frame" or "mirror" any GCMS® administrative access on any other server or wireless or Internet-based device; or (iv) reverse engineer or access the GCMS® software in order to (a) build a competitive product or service, (b) build a product using similar ideas, features, functions or graphics of the GCMS® software, or (c) copy any ideas, features, functions or graphics of the GCMS® software. The CivicPlus name, the CivicPlus logo, and the product and module names associated with the GCMS® software are trademarks of CivicPlus, and no right or license is granted to use them.

Indemnification

15. To the extent permitted by the law of Client's state, Client and CivicPlus shall defend, indemnify and hold the other Party harmless, its partners, employees, and agents from and against any and all lawsuits, claims, demands, penalties, losses, fines, liabilities, damages, and expenses including attorney's fees of any kind, without limitation, in connection with the operations of and installation of software contemplated by this Agreement, or otherwise arising out of or in any way connected with the CivicPlus provision of service and performance under this Agreement. This section shall not apply to the extent that any loss or damage is caused by the gross negligence or willful misconduct on the part of either party.

Liabilities

16. CivicPlus will not be liable for any act, omission of act, negligence or defect in the quality of service of any underlying carrier or other service provider whose facilities or services are used in furnishing any portion of the service received by the Client.
17. CivicPlus will not be liable for any failure of performance that is caused by or the result of any act or omission by Client or any entity employed/contracted on the Client's behalf.
18. Client agrees that it is solely responsible for any solicitation, collection, storage, or other use of end-users' Personal Data on the website. Client further agrees that CivicPlus has no responsibility for the use or storage of end-users' Personal Data in connection with the website or the consequences of the solicitation, collection, storage, or other use by Client or by any third party of Personal Data.
19. User logins are for designated Users and cannot be shared or used by more than one User. Client will be responsible for the confidentiality and use of User's passwords and user names. Client will also be responsible for all Electronic Communications, including those containing business information, account registration, account holder information, financial information, Client Data, and all other data of any kind contained within emails or otherwise entered electronically through the GCMS® software or under Client's account. CivicPlus will act as though Client will have sent any Electronic Communications it receives under Client's passwords, user name, and/or account number. Client shall use commercially reasonable efforts to prevent unauthorized access to or use of the GCMS® software and shall promptly notify CivicPlus of any unauthorized access or use of the GCMS® software and any loss or theft or unauthorized use of any User's password or name and/or user personal information.
20. Client shall comply with all applicable local, state, and federal laws, treaties, regulations, and conventions in connection with its use of the GCMS® software.

Force Majeure

21. No party shall have any liability to the other hereunder by reason of any delay or failure to perform any obligation or covenant if the delay or failure to perform is occasioned by force majeure, meaning any act of God, storm, fire, casualty, unanticipated work stoppage, strike, lockout, labor dispute, civic disturbance, riot, war, national emergency, act of Government, act of public enemy, or other cause of similar or dissimilar nature beyond its control.

Taxes

22. It is CivicPlus' policy to pass through sales tax in those jurisdictions where such tax is required. If the Client is tax-exempt, the Client must provide CivicPlus proof of their tax-exempt status, within fifteen (15) days of contract signing, and this agreement will not be taxed. If the Client's state taxation laws change, the Client will begin to be charged sales tax in accordance with their jurisdiction's tax requirements and CivicPlus has the right to collect payment from the Client for past due taxes.



Other Documents

23. The following are to be attached to and made part of this Contract:
- Exhibit A - Statement(s) of Work.
24. In the case of any conflict between the terms of this Agreement and any incorporated documents, such conflicts shall be resolved will the incorporated documents taking the following order precedence:
- This Master Services Agreement;
 - Exhibit A - Statement(s) of Work in descending order of execution (for example, the most recent SOW will control over other in the event of a conflict in terms).

Interlocal Purchasing Consent

25. This Agreement and any attached SOWs may be extended to any public entity in the State of Texas to purchase at SOW prices in accordance with the terms stated herein.

Miscellaneous Provisions

26. The invalidity, in whole or in part, of any provision of this Agreement shall not void or affect the validity of any other provision of this Agreement.
27. No amendment or change to this Agreement or any included SOW shall be effective unless by a written instrument executed by each of the Parties.

Acceptance

We, the undersigned, agreeing to the conditions specified in this document, understand and consent to the terms & conditions of this Agreement.

Client

Date

8/31/16

CivicPlus

Date

8/31/2016

Sign and E-mail the entire contract with exhibits to:

Contracts@CivicPlus.com

We will e-mail a counter-signed copy of the contract back to you so we can begin your project.

CivicPlus does not require a physical copy of the contract, however, if you would like a physical copy of the contract, mail one (1) copy of the contract with original signature to:

CivicPlus Contract Manager
302 S. 4th Street, Suite 500
Manhattan, KS 66502

Upon receipt of signed original, we will counter-sign and return the copy for your files.

**Exhibit A.1 - CivicPlus Statement of Work #1**

All Quotes are in US Dollars and Valid for 30 Days from August 4, 2016

Project Development and Deployment

- First Year Annual Services (Initial GCMS® upgrades, maintenance, support and hosting)
- Server Storage not to exceed **25 GB**
- Services and Deliverables as described in Addendum 1
- Premium suite of modules, as described in Addendum 2
- All pages of content migrated from <http://schertz.com/>
- Ongoing recurring 36-month redesign, as described in Addendum 3
- 3 Years of Agendas & Minutes in PDF or DOC format migrated
- 3 Days Onsite Implementation Training

\$32,239**Project Enhancements**

- 1 Year of Virtual Webmaster (5 hours monthly)
- CivicMobile Custom App
- CivicSend
- CivicMedia including 10 GB additional storage

Included**Total Fees Year 1 \$32,239****Annual Services (Continuing GCMS® Enhancements, Maintenance, Support and Hosting)***Billed 12 months from SOW signing; subject to annual 5% increase year 3 and beyond***\$5,210****Total Annual Services \$5,210**

1. Performance and payment under this SOW shall be subject to the terms & conditions of the Agreement by and between Client and CivicPlus, to which this Statement of Work #1 (SOW #1) is hereby attached as Exhibit A.1.
2. This SOW #1 shall remain in effect for an initial term of one year (12 months) from signing. In the event that neither party gives written notice to terminate, this SOW #1 will automatically renew for an additional 1-year Renewal Term.
3. The Total Fees Year 1 will be invoiced at the completion of the following phases as defined in Addendum 1 to this SOW #1:
 - a. Completion of Phase 2: Website Layout – one half of the Total Fees Year 1.
 - b. Completion of Phase 4: Customized Website Training – the remaining half of the Total Fees Year 1.
4. Renewal Term Annual Services shall be invoiced on the date of signature of relevant calendar years. Annual services, including but not limited to hosting, support and maintenance services, shall be provisioned in accordance with Addendum 4 to this SOW #1 and shall be subject to a 5% annual increase beginning in Year 3 of service.
5. After thirty-six (36) months of continuous service, Client is entitled to a no-cost redesign, details noted in Addendum 3. Redesigns that include additional features not available on the original website may be subject to additional charges. Additional features include, but are not limited to, additional modules and integration of third-party software.
6. The Client will be invoiced electronically through email. Upon request CivicPlus will mail invoices and the Client will be charged a \$5.00 convenience fee.

Acceptance

We, the undersigned, agreeing to the conditions specified in this document, understand and authorize the provision of services outlined in this Agreement.

Client

Date

CivicPlus

Date

**Addendum 1 to Exhibit A.1 - Project Development Division of Work**

Kick-Off <u>Deliverable:</u> Project Timeline, training jump start information, online forms, kick-off meeting	
CivicPlus will: • assign a project manager to this project • conduct a Project Kick-off to review awarded contract • establish communication plan for the duration of the project effort • work with Client to identify all key internal and external project stakeholders • develop project timeline • provide access to CivicPlus University (online training manuals, videos and other resources) for the Client staff	Client will: • complete the following prior to Phase 1: Website Optimization Form, Content Form, and DNS Worksheet • review and approve of project timeline within 5 business days • attend a kick-off meeting with key stakeholders or decision makers • if modifications are required after the review of the initial project timeline, Client has 10 business days to address the modifications and come to a consensus • approve the project timeline (limited to two reviews) prior to proceeding with the project • update the current primary live website content and delete any pages from the website that are no longer wanted or needed
Phase 1: Website Optimization <u>Deliverable:</u> Website Optimization Meeting	
CivicPlus will: • communicate status to Client, key stakeholders and personnel via emails or phone calls as needed • review the goals and expectations submitted on the forms Client completed to ensure Client needs are clearly understood • gather preliminary design data for use	Client will provide: • statistics from the current website from the past 12 months (optional) • pictures to be used in the overall design of the new website • a list of all divisions and/or departments within the organization • a list of third-party and in-house developed applications presently being utilized on the current website • a site map or outline of the current website's navigational structure if possible • a list of any content on the current primary website that must remain as is (verbatim) because of legal requirements
Phase 2: Website Layout <u>Deliverable:</u> Website grayscale layout and mood board color pallet presentation	
CivicPlus will: • present one custom layout in grayscale form and one mood board color palette based on the goals determined in the previous phase. The presented layout will show the placement of the navigation, graphic button and feature areas. The mood board will reflect the color and imagery that will represent the tone of the design • begin development of the website design upon layout and mood board approval	Client will: • approve one layout and the mood board • review marketing packet material and guidelines • Website Layout billing milestone complete



Phase 3: Website Reveal <u>Deliverable:</u> Website design and production website.	
CivicPlus will: • present a fully functional website on a production URL • migrate content pages to the production URL as described in Exhibit A.1 Statement of Work. • conduct a quality review of the website to ensure the functionality and usability standards are met • work with Client to prepare for training • migrate Agendas & Minutes in Microsoft Word.DOC or Adobe PDF format as described in Exhibit A.1 Statement of Work.	Client will: • evaluate the website design and content and provide CivicPlus with feedback • collaborate with CivicPlus on proposed changes • revise the design according to the approved timeline • if revised design changes are requested after the design approval timeline date, the project's Go Live date will be adjusted out (training and billing milestones will remain as per approved timeline) • provide CivicPlus will all the necessary DNS items identified for the website
Phase 4: Implementation Training (See Exhibit A.1 Statement of Work for details) <u>Deliverable:</u> Train System Administrator(s) on GCMS® Administration, permissions, setting up groups and users, module administration. Basic User training on pages, module entries, applying modules to pages. Applied use and usability consulting to result in effective communication through your website.	
CivicPlus will: • provided training to Client before the website goes live • train staff members based on internal daily tasks and workflow • train staff members on how to use the GCMS®, update content pages and modules	Client will: • provide a location for training in Client with internet access • provide computers for staff to be trained on • Phase 4: Training billing milestone complete
Phase 5: Go Live <u>Deliverable:</u> Custom website launched to the public.	
CivicPlus will: • address system issues and bugs that Client finds • redirect the domain name to the newly developed website as per approved timeline	Client will: • test and update the final site as per approved timeline • notify CivicPlus on any system issues or bugs found in the website



Addendum 2 to Exhibit A.1 – Modules & Functionalities

Project Development and Deployment Includes the Following:	
Modules	Functionality
• Agenda Center • Alerts Center & Emergency Alert Notification • Archive Center • Bid Postings • Blog • Business/Resource Directory • Calendar • Citizen Request Tracker™ (5 users) • Community Connection • Community Voice™ • Document Center • ePayment Center (NOTE: Requires additional fee as a third-party service) • Facilities & Reservations • Frequently Asked Questions • Forms Center • Job Postings • My Dashboard • News Flash • Notify Me® email and 500 SMS subscribers • Photo Gallery • Quick Links • Real Estate Locator • Spotlight • Staff Directory	• Action Items Queue • Audit Trail / History Log • Automated PDF Converter • Automatic Content Archiving • Dynamic Breadcrumbs • Dynamic Sitemap • Expiring Items Library • Graphic Link Administration • Links Redirect • Menu Management • Mouse-over Menu Structure • Online Editor for Editing and Page Creation (WYSIWYG) • Online Web Statistics • Printer Friendly/Email Page • RSS • Site Layout Options • Site Search & Entry Log • Slideshow • Social Media Integration (Facebook, Twitter, Instagram) • User & Group Administration Rights • Web Page Upload Utility • Website Administrative Log



Addendum 3 to Exhibit A.1 - Redesign Details

CivicPlus Project Development Services & Scope of Services for CP Basic Redesign

- New design for all items originally contracted for (main site, department headers and subsites)
- Redevelop banner
- Redevelop navigation method (may choose top drop-down or other options)
- Design setup - wireframe
- Redevelop graphic elements of website (Newsflash, FAQs, Calendar, etc.)
- Project Management
- Testing
- Review
- Content Migration – Includes retouching of all existing published pages to ensure proper formatting, and application of new site styles. Note: Content will **not** be rewritten, reformatted or pages broken up (shortened or re-sectioned)
- Site styles and page layouts will be touched so all pages match the new design and migrate cleanly
- Spelling and broken links will be checked and reported if unable to correct

**Addendum 4 – Hosting, Support and Service Level Agreement****Hosting Details**

Data Center	• Highly Reliable Data Center • Managed Network Infrastructure • On-Site Power Backup & Generators • Multiple telecom/network providers • Fully redundant Network • Highly Secure Facility • 24/7/365 System Monitoring
Hosting	• Automated GCMS® Software Updates • Server Management & Monitoring • Multi-tiered Software Architecture • Server software updates & security patches • Database server updates & security patches • Antivirus management & updates • Server-class hardware from nationally recognized provider • Redundant firewall solutions • High performance SAN with N+2 reliability
Bandwidth	• Multiple network providers in place • Unlimited bandwidth usage for normal business operations (does not apply in the event of a cyber attack) • 22 Gb/s burst bandwidth
Disaster Recovery	• Emergency After-hours support, live agent (24/7) • On-line status monitor at data center • Event notification emails • Guaranteed recovery TIME objective (RTO) of 8 hours • Guaranteed recovery POINT objective (RPO) of 24 hours • Pre-emptive monitoring for disaster situations • Multiple data centers • Geographically diverse data centers
DDoS Mitigation	• Defined DDoS Attack Process • Identify attack source • Identify type of attack • Monitor attack for threshold engagement



Support and Maintenance

Support Services

CivicPlus' on-site support team is available from 7:00 am to 7:00 pm CT to assist clients with any questions, concerns or suggestions regarding the functionality and usage of CivicPlus' GCMS® and associated applications. The support team is available during these hours via CivicPlus' toll-free support number and e-mail. Support personnel will respond to calls as they arrive (under normal circumstances, if all lines are busy, messages will be returned within two hours; action will be taken on e-mails within four hours), and if Client's customer support liaison is unable to assist, the service escalation process will begin.

Emergency support is available 24-hours-a-day for designated, named Client points-of-contact, with members of both CivicPlus' project management and support teams available for urgent requests. Emergency support is provided free-of-charge for true emergencies (ie: website is down, applications are malfunctioning, etc.), though Client may incur support charges for non-emergency requests during off hours (ie: basic functionality / usage requests regarding system operation and management). The current discounted rate is \$175/hour.

CivicPlus maintains a customer support website that is accessible 24-hours-a-day with an approved client username and password.

Service Escalation Processes

In the event that CivicPlus' support team is unable to assist Client with a request, question or concern, the issue is reported to the appropriate CivicPlus department.

Client requests for additional provided services are forwarded to CivicPlus' Client Care personnel.

Client concerns/questions regarding GCMS® or associated application errors are reported to CivicPlus' technical team through CivicPlus' issue tracking and management system to be addressed in a priority order to be determined by CivicPlus' technical team.

All other requests that do not meet these criteria will be forwarded to appropriate personnel within CivicPlus' organization at the discretion of the customer support liaison.

Included Services:	
Support	Maintenance of CivicPlus GCMS®
7 a.m. – 7 p.m. (CST) Monday – Friday (excluding holidays)	Install Service Patches for OS
24/7 Emergency Support	System Enhancements
Dedicated Support Personnel	Fixes
Usability Improvements	Improvements
Integration of System Enhancements	Integration
Proactive Support for Updates & Fixes	Testing
Online Training Manuals	Development
Monthly Newsletters	Usage License
Routine Follow-up Check-ins	
CivicPlus Connection	

CivicPlus Service Level Agreement

CivicPlus will use commercially reasonable efforts to make the GCMS® available with a Monthly Uptime Percentage (defined below) of at least 99.7%, in each case during any monthly billing cycle (the "Service Commitment"). In the event CivicPlus does not meet the Service Commitment, you will be eligible to receive a Service Credit as described below.

Definitions

- "Monthly Uptime Percentage" is calculated by subtracting from 100% the percentage of minutes during the month in which the GCMS, was "Unavailable." Monthly Uptime Percentage measurements exclude downtime resulting directly or indirectly from any Exclusion (defined below).
- "Unavailable" and "Unavailability" mean:
 - The HTML of the home page of the site is not delivered in 10 seconds or less 3 times in a row when tested from inside our network and returns a status of 200.
 - The Main page of the site returns a status other than 200 or 302 3 times in a row.
- A "Service Credit" is a dollar credit, calculated as set forth below, that we may credit back to an eligible account.

Service Commitments and Service Credits

Service Credits are calculated as a percentage of the total charges paid by you (excluding one-time payments such as upfront payments) for the given calendar month accordance with the schedule below.

Uptime Percentage in Calendar Month	Service Credit as Percentage of Monthly Fee
99.9% or Greater	None
99.9% to 99.0%	3.5%
99.0% to 98.0%	7%
98.0% to 97.0%	14%
97.0% or less	20%

We will apply any Service Credits only against future payments otherwise due from you. Service Credits will not entitle you to any refund or other payment from CivicPlus. A Service Credit will be applicable and issued only if the credit amount for the applicable monthly billing cycle is greater than one dollar (\$1 USD). Service Credits may not be transferred or applied to any other account. Unless otherwise provided in the Client Agreement, your sole and exclusive remedy for any unavailability, non-performance, or other failure by us to provide the service is the receipt of a Service Credit (if eligible) in accordance with the terms of this SLA.

Credit Request and Payment Procedures

To receive a Service Credit, you must submit a claim by opening a case with Support. To be eligible, the credit request must be received by us by the end of the second billing cycle after which the incident occurred and must include:

1. the words "SLA Credit Request" in the subject line;
2. the dates and times of each Unavailability incident that you are claiming;
3. the affected Site domains; and
4. Any documentation that corroborate your claimed outage.

If the Monthly Uptime Percentage of such request is confirmed by us and is less than the Service Commitment, then we will issue the Service Credit to you within one billing cycle following the month in which your request is confirmed by us. Your failure to provide the request and other information as required above will disqualify you from receiving a Service Credit.

SLA Exclusions

The Service Commitment does not apply to any unavailability, suspension or termination of GCMS®, or any other GCMS® performance issues: (i) that result from a suspension; (ii) caused by factors outside of our reasonable control, including any force majeure event or Internet access or related problems beyond the demarcation point of CivicPlus; (iii) that result from any actions or inactions of you or any third party; (iv) that result from your equipment, software or other technology and/or third party equipment, software or other



technology (other than third party equipment within our direct control); (v) that result from any maintenance as provided for pursuant to the Client Agreement; or (vi) arising from our suspension and termination of your right to use the GCMS® in accordance with the Client Agreement (collectively, the "SLA Exclusions"). If availability is impacted by factors other than those used in our Monthly Uptime Percentage calculation, then we may issue a Service Credit considering such factors at our discretion.

Disaster Recovery Feature Service Commitment

CivicPlus will use commercially reasonable efforts to make insure that in the event of a disaster that make the Primary data center unavailable (defined below) Client site will be brought back online at a secondary data center (the "Service Commitment"). In the event CivicPlus does not meet the Service Commitment, you will be eligible to receive a Service Credit as described below.

Definitions

- "Datacenter availability" is determined by inability to provide or restore functions necessary to support the Service. Examples of necessary functions include but are not limited Cooling, Electrical, Sufficient Internet Access, Physical space, and Physical access.
- A "Service Credit" is a dollar credit, calculated as set forth below, that we may credit back to an eligible account.
- Recovery Time Objective (RTO) is the most anticipated time it will take to bring the service back online in the event of a data center event.
- Recovery Point Objective (RPO) the amount of data lost that is considered acceptable.

Service Commitments and Service Credits

Service Credits are calculated as a percentage of the total charges paid by you (excluding one-time payments such as upfront payments) for the month accordance with the schedule below.

Recovery Time Objective

8 Hours

Service Credit Percentage

10% of one month's fee

Recovery Point Objective

24 Hours

Service Credit Percentage

10% of one month's fee